

THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:

MR. JUSTICE MUHAMMAD HASHIM KHAN KAKAR
MR. JUSTICE SALAHUDDIN PANHWAR
MR. JUSTICE ISHTIAQ IBRAHIM

JAIL PETITION NO.201 OF 2025

(On appeal against the judgment dated 18.06.2025, passed by the Lahore High Court, Lahore in Criminal Appeal No.37725-J of 2022 and Murder Reference No.162 of 2022).

Muhammad Shafi

...Petitioner(s)

VERSUS

The State

...Respondent(s)

For the Petitioner(s): Rana Kashif Saleem, ASC

For the State: Mr. Tariq Siddique, Addl. PG, Punjab

For the Complainant: Complainant in person

Date of hearing: 19.02.2026.

JUDGMENT

ISHTIAQ IBRAHIM, J.- The prosecution's case, as unfolded in First Information Report (FIR) No. 25/2020 dated 22.01.2020 (Exh. PD/1), registered under Sections 302, 324, 337-A(i), 337-A(ii), 337-F(ii), 337-F(iv), 386 and 34 of the Pakistan Penal Code, 1860 (PPC) at Police Station Sohdra, Wazirabad, is that Zafrullah Khan (PW-7), the informant of the FIR, along with his brothers Shafatullah and Zakaullah, had constructed a haveli (cattle farm) opposite to their residential houses in village Pathan Wali. For the care and maintenance of their cattle/buffaloes, they had employed Muhammad Shafi (the petitioner) and his brother Muhammad Rafi, both of whom resided in the said haveli along with their respective families. On 22.01.2020, about 3:00 p.m., the informant Zafrullah (PW-7), his brothers Shafaat Ullah and Zaka Ullah, his son Abdullah (PW.8), and his nephews Attique Ullah and Abdullah (PW.8) were

seated in the courtyard of their house, engaged in conversation with guests Muhammad Iqbal and Mubashir Iqbal (PW.13). During this time, the petitioner Muhammad Shafi approached and informed Zakaullah that a person had arrived at the haveli/Cattle farm and wished to meet him. Acting upon his message, Zakaullah accompanied Muhammad Shafi to the haveli/cattle farm. After some interval, Muhammad Shafi returned and conveyed to Shafaat Ullah that the same individual at the haveli was also calling for him. Consequently, Shafaat Ullah proceeded to the haveli in the company of Muhammad Shafi. When a considerable period elapsed and neither Zakaullah nor Shafaat Ullah returned, the informant Zafrullah growing apprehensive, proceeded towards the haveli along with his son, nephews and guests named above. Upon reaching the courtyard of the haveli/cattle Farm, he directed his nephew Attique Ullah to enter and ascertain the situation inside the room. Moments later, Attique Ullah emerged in visible distress, crying out, upon which the informant and his companions rushed inside, where they saw the petitioner Muhammad Shafi and co-accused Muhammad Rafi present within the room, each armed with daggers. It is alleged that co-accused Muhammad Rafi had caught hold Attique Ullah firmly, while the petitioner, Muhammad Shafi, brutally slaughtered him with a dagger. When prosecution witnesses Abdullah and Ihtisham intervened in an attempt to rescue the victim and apprehend the accused, they were also attacked and sustained injuries from dagger blows inflicted by the accused. After committing the offence, both accused fled the scene on a Honda 125 motorcycle bearing registration No. GAM-7335. Upon entering the room, the informant and his companions were confronted with the harrowing sight of the lifeless bodies of his brothers, Shafaat Ullah and Zakaullah, and his nephew, Attique Ullah. The deceased had been mercilessly slaughtered; their bodies bore multiple dagger wounds and lay in pools of blood. Injured Abdullah and Ihtisham were shifted to civil hospital Wazirabad. The dead bodies of the deceased were left at the spot under the escort of PW Mubashir Iqbal while he went to Police Station for reporting the occurrence. On his report, FIR (ibid) was registered against the petitioner and co-accused Muhammad Rafi. Motive behind the occurrence as alleged by the

informant was that the accused were demanding advance amount from the deceased in respect of the cattle farm, however, their demand was refused by them, on which the accused annoyed and committed their murder.

2. Upon arrest of the petitioner Muhammad Shafi and completion of investigation, a report under section 173 of the Code of Criminal Procedure, 1898 ('the Code') was submitted against him before the Additional Sessions Judge, Wazirabad ('Trial Court'). Upon conclusion of trial, the Trial Court vide judgment dated 30.05.2022, while declaring co-accused Muhammad Rafi as Proclaimed Offender, convicted and sentenced the petitioner as under:-

Under Section 302(b) PPC: Sentenced to death on three counts as Ta'azir with direction to pay Rs.2,00,000/- as compensation to legal heirs of each deceased in terms of Section 544-A of the Code, recoverable as arrears of land revenue and in default thereof to further undergo simple imprisonment (S.I) for six months under each count.

Under Section 324 PPC: To undergo rigorous imprisonment for seven years on two counts and to pay Rs.50,000/-, as compensation to each injured Ihtisham and Abdullah and in default thereof to further undergo three months S.I. under each count.

Under Section 337-A(i) PPC: To undergo rigorous imprisonment for two years on two counts as Ta'azir and to pay Rs.25,000/- as Daman to each injured.

Under Section 337-A(ii) PPC: To undergo rigorous imprisonment for five years as Ta'azir and to pay Arsh (5% of Diyat) amounting to Rs.213060/- to injured Ihtisham.

Under Section 337-F(iv) PPC: To undergo rigorous imprisonment for five years as Ta'azir and to pay Rs.25,000/- as Daman to injured Ihtisham.

Under section 337-F(ii) PPC: To undergo rigorous imprisonment for three years as Ta'azir and to pay Rs.25,000/- as Daman to injured Abdullah.

The amount of Arsh and Daman was directed to be recovered as arrears of land revenue and in case of default thereof, the convict/petitioner is to undergo simple imprisonment for two months under each default. The substantive sentences of imprisonment under the above referred offences were directed to run concurrently and benefit of Section 382-B of the Code was extended to the petitioner.

3. The Lahore High Court, Lahore ('the High Court'), dismissed the appeal of the petitioner-convict and consequently answered the Murder Reference No.162 of 2022, sent by the Trial Court for

confirmation or otherwise of the death sentence of the petitioner-convict in the affirmative vide judgment dated 18.06.2025 ('impugned judgment').

4. Through the instant Jail Petition, the petitioner-convict seeks leave to appeal against the impugned judgment of the High Court.

5. We have heard the learned counsel for the petitioner-convict as well as the learned Additional Prosecutor General, Punjab, appearing on behalf of the State. The complainant was present in person. Evidence on record and the judgments of the courts below perused.

6. The unfortunate occurrence in which three persons, namely Shafaat Ullah, Zaka Ullah and Attique Ullah, were mercilessly done to death with daggers, while Abdullah (PW-8) and Ihtisham (PW.9) sustained multiple sharp-edged injuries, took place on 22.01.2020 at about 3:00 p.m. inside the haveli (cattle farm) situated in village Pathan Wali. The ocular account of the occurrence has been furnished by Zafrullah Khan (PW-7), the informant of the FIR, injured eyewitnesses Abdullah (PW-8) and Ihtisham (PW.9) as well as Mubashar Iqbal (PW-13). The medico-legal reports available on record reveals that both injured eyewitnesses suffered injuries caused by a sharp-edged weapon. The presence of injuries on their persons is a stamp of truth, lending intrinsic assurance to their presence at the place of occurrence at the relevant time. Their presence, therefore, is most natural and free from doubt. The informant Zafrullah Khan (PW-7) is a resident of the same village, and the petitioner-convict was admittedly employed by him and his deceased brothers for the care of the cattle farm, along with the absconding co-accused. He has plausibly explained his presence at the spot. Likewise, Mubashar Iqbal (PW-13), who had come to visit the informant and his deceased brothers, has also satisfactorily accounted for his presence. All the eyewitnesses along with the three deceased were seated in the courtyard when the petitioner-convict, by deceit, called the deceased one after the other to the haveli/cattle farm where they were done to death. We have meticulously examined the testimonies of the eyewitnesses and observed that

they are in complete harmony with one another on all material particulars of the occurrence including its date, time and place, as well as the manner in which the offence was perpetrated. Their accounts are equally consistent regarding the prelude to and aftermath of the incident. Despite searching cross-examination, the defence has failed to extract anything beneficial to its case or capable of casting doubt upon their veracity or presence at the scene. The incident occurred in broad daylight, and the petitioner-convict was admittedly known to the eyewitnesses as their employee. In such circumstances, the possibility of mistaken identity stands completely ruled out. It is to be noted that the complainant is the real brother of the deceased Shafaat Ullah and Zaka Ullah, while Attique Ullah deceased was his nephew. Injured PW Abdullah is the son of deceased Shafaat Ullah, and injured PW Ihtisham is the son of informant Zafrullah. It is beyond the realm of prudence to conceive that such closely related witnesses, who witnessed the brutal murder of their own kith and kin, would allow the real culprits to escape and falsely implicate an innocent person with whom they had no prior animosity. It is now a well-settled principle of law that substitution of real offenders is a rare phenomenon, particularly where eyewitnesses have lost their loved ones before their very eyes. In this regard, reliance is aptly placed upon the judgments rendered in *Asfandiyar v. The State and others* (2021 SCMR 2009) and *Muhammad Abbas and another v. The State* (2023 SCMR 487).

7. The medical evidence further fortifies the ocular account. Dr. Muhammad Salik (PW-11), who examined the injured eyewitnesses, found seven injuries on the person of injured Abdullah and four injuries on the person of injured Ihtisham, all caused by a sharp-edged weapon. Dr. Saud Shabbir Tarar (PW-1), who conducted the post-mortem examinations of the three deceased, observed eleven injuries on Attique Ullah deceased, twenty-two injuries on Zaka Ullah deceased and five injuries on Shafaat Ullah deceased. According to him, the injuries were ante-mortem in nature and sufficient, in the ordinary course of nature, to cause death. The defence cross-examined both medical officers at

length but could not elicit anything to undermine their opinions or to suggest that the injuries were caused otherwise than by a sharp-edged weapon. During the spot inspection, the Investigating Officer secured bloodstained earth and other incriminating articles from the places where the deceased and injured were found, through recovery memos Exh. PQ, Exh. PP and Exh. PO. These articles were sent to the Punjab Forensic Science Agency (PFSA), Lahore, and the positive report (Exh.PMM) lends strong corroboration to the prosecution's version, confirming the crime scene and connecting the bloodstained articles and weapons with the occurrence.

8. On an independent reappraisal of the entire evidence, we are persuaded to hold that the learned Courts below have rightly appreciated the ocular testimony in conjunction with the medical and circumstantial evidence, including the recoveries and the positive PFSA report. The chain of evidence is complete and unbroken. The prosecution has successfully established not only the commission of the triple murder but also the injuries inflicted upon the two eyewitnesses, and has further proved the motive through the testimony of the informant. We are, therefore, of the considered and unanimous view that the conviction recorded against the petitioner-convict is well-founded, based upon confidence-inspiring evidence, and calls for no interference.

9. We have given our thoughtful consideration to the question of sentence, but we are unable to find any mitigating or extenuating circumstance that may justify showing leniency to the petitioner-convict. The manner in which the occurrence was committed clearly reflects its gravity and brutality. The petitioner-convict, acting in concert with his co-accused, deceitfully called the deceased one after the other to the cattle farm and then subjected them to a merciless attack with daggers, resulting in the cold-blooded murder of three persons. The sheer number of injuries inflicted upon the bodies of the deceased, particularly the twenty-two wounds on one of them, namely, Zaka Ullah deceased, establishes the extreme brutality. The violence did not stop there as when the injured eyewitnesses attempted to intervene, they too were attacked, as a result, they sustained serious injuries. The entire occurrence reveals extreme

cruelty and a shocking disregard for human life. The occurrence was committed in broad daylight at the very place where the petitioner-convict along with absconding co-accused was employed and trusted and both were residing with their families. Instead of honoring that trust, the same was abused in the most tragic manner. This betrayal, coupled with the calculated and relentless manner in which the crime was carried out, aggravates the guilt of the petitioner-convict. There is nothing on record to suggest any sudden provocation, grave and immediate cause, or any other circumstance that might lessen the seriousness of the offence. Neither there is any material indicating remorse nor any exceptional factor that could warrant a lesser sentence. It is well settled that where a murder is committed in a brutal and heinous manner, and no mitigating circumstance is available, the award of capital punishment may be justified. In the present case, the cold-blooded murder of three persons and the causing of serious injuries to two eyewitnesses, without any extenuating circumstance, leave no room for leniency. The reasons given by the learned Courts below for awarding the capital sentence are sound, well-reasoned and fully supported by the evidence on record. We find no illegality, infirmity or misreading of evidence that would warrant interference with the sentence awarded.

10. Accordingly, this jail petition is dismissed and leave to appeal is refused.

Judge

Judge

Judge

Islamabad the
19th February, 2026
Approved for Reporting
M.Siraj Afridi PS